

NEGOTIATED AGREEMENT

BETWEEN

SAINT ELMO BOARD OF EDUCATION

AND

SAINT ELMO EDUCATION SUPPORT PERSONNEL

2023 – 2025

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ARTICLE I

RECOGNITION

1.1 The Board of Education of Community Unit District #202, St. Elmo, Illinois (hereinafter referred to as the "Employer" or "Board") recognizes the St. Elmo Education Support Personnel Association, IEA-NEA (hereinafter referred to as the "Association" or the "Union") as the sole and exclusive bargaining representative for all regularly employed full and part-time non-certified employees (hereinafter referred to as the "Employee" or "Bargaining Unit Member"). Excluded from the bargaining unit are the unit secretary, the unit secretary/bookkeeper, the maintenance supervisor, and all managerial, supervisory, and confidential employees as defined by the Illinois Educational Labor Relations Act.

1.2 A full-time employee must work at least 40 hours per week, five (5) days per week and at least fifty-two weeks per year.

Unless stated differently, regularly employed part-time employees will be included in the bargaining unit except their salaries and benefits shall be based on their fractionalized employment status.

1.3 The Board agrees not to negotiate with any other employees' organization, individual employee, or group of employees as defined in 1.1 above, with regard to negotiable items, unless otherwise provided for in this Agreement or unless mutually agreed to by the parties during the term of this Agreement.

ARTICLE II

NEGOTIATIONS PROCEDURES

2.1 Negotiation Committee: Designated representatives of the Board and the Association shall constitute the respective negotiating committee. The parties' designated representatives will have all the necessary powers and authority to make and consider proposals, counter-proposals, and tentative agreements in the course of negotiations, subject to ratification by the Board and the Association respectively. It is agreed to by the parties that each negotiating team shall not exceed seven (7) in number.

2.2 Meetings: Within seven working days following May 1 of the last year of the agreement, the initial meeting shall be held. The ground rules shall be established at this meeting. The Association and Board shall determine a mutually agreed upon date within thirty days of the initial meeting to begin negotiations.

2.3 Exchange of proposals: Packets of initial contract proposals will be exchanged by the parties at the first negotiations meeting. No new or additional items may be introduced after the first meeting unless mutually agreed to by the parties.

2.4 Agreement: When tentative agreement is reached on an item, it shall be reduced to writing and initialed by the parties prior to adjournment of the meeting. When tentative agreement has been reached on all items, it shall constitute a complete Tentative Agreement, and shall be prepared for presentation to the Board and Association for ratification.

Prior to presenting for ratification, the complete Tentative Agreement shall be proofread by one representative from the Association and one representative from the Board.

Upon ratification, the Agreement shall be signed by the President of the Association and the President of the Board.

2.5 If an agreement is not reached by August 15th either party may call for a mediator. The guidelines for mediation, as set down in the Illinois Educational Relations Act and its Rules and Regulations, shall be the procedures followed by both negotiating parties. It is agreed that, if either party to this Agreement calls for mediation, the parties will jointly request the Federal Mediation and Conciliation Service to appoint a mediator from its staff.

Should FMCS be unavailable, the parties shall immediately commence discussions as to a replacement. In the event that the parties cannot agree upon a replacement, the Illinois Educational Labor Relations Board shall be notified.

ARTICLE III

GRIEVANCE PROCEDURE

3.1 Definition - A grievance shall be:

3.1.1 Any written claim by the Association, an employee, or a group of employees that there has been a violation, misrepresentation, misapplication of the terms of this agreement.

The Association shall have the right to present grievances.

3.1.2 A grievance must be filed within 15 days of the occurrence of the event which gave rise to the grievance stating the Article and section alleged to be violated and the remedy sought. The number of days indicated at each step in the procedure shall be considered as the maximum allowable to the parties and every effort shall be made to resolve the grievance as rapidly as possible. All time limits consist of weekdays.

3.2 Procedures - The parties hereto acknowledge that it is usually most desirable for an employee and the employee's immediately involved -- supervisor to resolve problems through free and informal communication. If, however, the informal process fails to satisfy the employee or the association, a grievance may be processed as follows:

3.2.1 Step 1 - The employee or the association may present the grievance in writing to the immediately involved supervisor, who will arrange for a meeting to take place within 10 days after receipt of the grievance. The Association's representative, the grievant, and the immediately involved supervisor shall be present for the meeting. Within 10 days of the meeting, the grievant and the Association shall be provided with the supervisor's written response, including the reasons for the decision. A proper answer regarding the decision is "no violation of the Agreement, Grievance denied".

3.2.2 Step 2 - If the grievance is not resolved at Step 1, then the employee or association may refer the grievance to the Superintendent (or the superintendent's official designee) within 10 days after receipt of the Step 1 answer. The Superintendent shall arrange with the Association representative and employee for a meeting to take place within 10 days of the superintendent's receipt of the appeal. Each party shall have the right to include in its representation such witnesses and counselors, as it deems necessary. Within 10 days of the meeting, the Association shall be provided with the Superintendent's written response, including the reasons for the decision. A proper answer regarding the decision is "no violation of the Agreement, Grievance denied".

3.2.3 Step 3 - If the grievance is not resolved at Step 2, then it may be referred to the Board of Education within fifteen days after the receipt of the Step 2 answer. The Board of Education shall consider the appeal at its next regular board meeting unless the appeal is submitted less than five (5) days before that meeting, in which case the Board will consider the matter at the following regular meeting. Each party shall have the right to include in its representation such witnesses and counselors, as it deems necessary. Within 10 days of the meeting, the association shall be provided with the Board of Education's written response including the reasons for the decision. Any Step 3 grievance hearing conducted by the Board will be held during a special meeting by the Board within the time limits determined. The meeting will convene in open session and then enter into closed session as provided by Section XVIII of the Illinois Education Labor Act to hear the grievance. Any determination by the Board to refer a grievance directly to Step 4 arbitration, or any decision the Board reaches, if it hears a grievance, will be reported in written form within the time limits determined.

3.2.4 Step 4 - If the grievance is not satisfactorily resolved at Step 3, the grievance may proceed to binding arbitration. The Association may submit to the Board a written request on behalf of the Association and the grievant to enter into binding arbitration through the American Arbitration Association, which shall act as administrator of the proceedings. The Association may elect to take the grievance to arbitration no later than thirty (30) days after the Board's response. If the Association does not proceed to arbitration within 30 days of the Board's response the grievance shall be deemed withdrawn.

Expenses for the arbitrator's services shall be born equally by the District and the Association.
The decision of the arbitrator shall be final and binding on the parties.

3.3 Bypass to Superintendent - If the Association and the Superintendent agree, any step of the grievance procedure may be bypassed and the grievance brought directly to the next step.

- 3.4 Bypass to Arbitration - If the Board and Association agree, a grievance may be submitted directly to arbitration.
- 3.5 No Reprisals Clause - No reprisals shall be taken by the Board or the Administration against any employee because of the employee's participation in a grievance.
- 3.6 Should the Arbitrator, during the investigation or processing of any grievance, require that an employee or an Association representative be released from their regular assignment, the employee or Association representative, shall be released without loss of pay or benefits.
- 3.7 Filing of Materials - All records related to a grievance shall be filed separately from the personnel files of the employees.
- 3.8 Grievance Withdrawal - A grievance may be withdrawn at any level without establishing precedent.
- 3.9 No Written Response - Failure of the employee or the Association to act on a grievance within the prescribed time limits will bar any further appeal. Time limits may be extended by mutual agreement.
- 3.10 AAA Rules - At the mutual agreement of the parties, the Expedited Arbitration Rules of the American Arbitration Association shall be used instead of the Voluntary Labor Arbitration Rules.
- 3.11 Costs of Arbitration - The fees and the expenses of the arbitrator shall be shared equally by the parties. The parties shall each be responsible for the costs of their own representation. If only one party requests the presence of a court reporter, that party shall bear the costs of the reporter. If only one party requests the postponement of an arbitration hearing, that party shall bear the costs of such postponement.

ARTICLE IV

EMPLOYEE AND ASSOCIATION RIGHTS

4.1 Right of Representation - When an employee is required to appear before the Board or administration concerning a matter which may lead to the employee's termination, reduction in salary, suspension with or without pay, or a written reprimand which will be placed in the personnel file, he/she shall be entitled to have a representative present upon request. Further, when an employee is required to appear before the Board or administration, said employee shall be advised in writing of the general reason for the requirement at least twenty-four (24) hours in advance of the meeting.

When an employee is required to meet with the Superintendent or Building Principal for any of the above reasons, he/she shall be entitled to have a representative present upon request. The right of representation does not include evaluation conferences.

4.2 Right to Review - Personnel File - The official file of all materials related to an employee shall exist at the Superintendent's office. Each employee shall have the right to review the contents of said employee's personnel file, with the exception of pre-employment confidential materials, and to attach and place therein written reactions to the contents. The employee may review his/her file upon forty-eight (48) hours' written advance notice submitted to the Superintendent. The file can be viewed during non-work time and when it does not interrupt the normal work day. The employee may not remove any material from said file and must review the content of his/her file in the presence of the Superintendent or designee.

Written Response - An employee shall be provided with a copy of all official written letters of reprimand placed in the employee's personnel file. An employee shall have the opportunity to provide a written response to the written reprimand within five working days from the date the employee received his/her copy of written reprimand.

4.3 Payroll Deduction

- A. Upon the written request of an employee on an Authorization Form furnished by the Association, the Board shall deduct from the compensation of that employee the current dues, payments or contributions payable by that employee to the Association. Such authorization shall remain in effect from year to year, except that the employee may revoke it between September 1 and September 15 of any year.

All dues, payments or contributions deducted by the Board shall be remitted to the Association no later than ten (10) working days after such deductions are made.

- B. The Board also agrees, upon written authorization from an employee, to provide payroll deduction for:
- insurance premiums
 - tax-sheltered annuities

4.4 Meetings Notices and General Information - The Association shall have the right to:

- A. a designated room of adequate size. Arrangements must be made in advance with no disruption of the normal school day. Any extra-ordinary expense incurred through the use of school facilities will be the Association's responsibility.
- B. employee's mail boxes, inter-school mail, and school bulletin boards for the purpose of internal communications. No material may be posted on bulletin boards without the written approval of the building principal. Items placed in mailboxes must be approved by the building principal/administration.
- C. school equipment, e.g., copier machines. Association will assume all costs.
- D. transact official Association business on school property, providing it does not occur during employees' work hours and does not disrupt the normal educational process.

4.5 Notice of Meetings

The President of the Association or the President's designee will be given, at the same time as the media is notified, written notice of all regular, special, and emergency meetings of the Board together with a copy of the agenda. One copy of Open Session Board minutes shall be made available to the president of the Association within seven days after the Board has approved the minutes of the previous meeting.

- 4.6 Association Leave
Up to two members of the Association will each be allowed not more than two (2) days absence from their duties without loss of pay, to attend state or national Association workshops. Up to two additional days shall be used provided the Association agrees to reimburse the Board for the cost of substitute pay, should substitutes be used. The Association shall reimburse the Board within thirty (30) days of such absence. A written request for leave must be submitted to the Superintendent a minimum of five days in advance of the leave.
- 4.7 Documents
The Board agrees to make available to the President of the Association or designee upon written requests, a copy of the District's budget, budget amendments, annual financial report, board policies, and policy additions, deletions, or modifications. These documents will be provided electronically and may be posted on the district website.
- 4.8 Names of New Employees/Resignations, Retirements, Terminations
- A. District agrees to provide employee information to Association within 10 calendar days of the start of the school year.
1. Information must include employee's name, employee ID number (if any), job title, worksite, home address, and work phone number.
 2. Must also include any personal email addresses on file with the employer.
- B. District must provide Association, within 10 calendar days of hire of a new employee, the employee's name, date of hire, job title, worksite, home address, work phone number, work email address, and any personal email address on file with the employer.
- C. The District also agrees to notify the Association President or designee in writing within two (2) weeks of any resignation, retirement, or termination of any member of the bargaining unit.
- 4.9 Distribution of Agreement
Within thirty (30) days of ratification of the Agreement, the master copy of the ratified contract will be provided to the Board and Association Representative.
- 4.10 Waiver Application Notification
The Board of Education shall notify the President of the Association prior to the day the Board considers a waiver application of the school code. The notice to the President shall contain the subject and nature of the waiver request.
- 4.11 EMPLOYEE'S PRIVATE INFORMATION
1. The District is prohibited from disclosing employee's home address (including zip code and county, date of birth, personal phone numbers, personal email address, Association membership status, and any authorization of dues deduction.
 2. If District receives a request for any of the above information, it must notify the Association and employee of the request and provide a copy of its response to the request within 5 work days of sending the response.

ARTICLE V

CONDITIONS OF EMPLOYMENT

5.1 Resignation

An employee who is resigning from her/his position shall give the normal two weeks' notice.

5.2 Breaks

Full-time employees, working 7 or more consecutive hours, shall be entitled to one 15 minute break each day or shift. Part-time employees, working more than 4 but less than 7 consecutive hours, shall be entitled to one (1) 15 minute break a day. Paid breaks are not required by law.

5.3 Evidence of Physical Fitness

All new employees at the time of employment shall secure a physical examination from a licensed physician showing evidence of physical fitness to perform duties assigned. A TB test will be required for all Preschool staff. The cost of such examination shall rest with the employee.

The Board may, from time to time, require an examination of any employee by a licensed physician to practice medicine and surgery in all its branches and shall pay the expenses thereof from school funds.

5.4 In-Service

When an employee is required to attend an institute, training session, or in-service program during work time, the employee shall suffer no loss of pay or benefits for said time. When an employee is required to attend any such program during her/his personal time, the employee shall be paid at the employee's normal rate of pay. If an employee wishes to attend an inservice that is not required, it will be at the employee's expense, and time will not be compensated.

5.5 Employee Travel

Employees who are required to use their vehicles to travel shall be reimbursed at the current IRS mileage rate. Employees must request the use of a district vehicle and be notified that there is no vehicle available in order to be reimbursed for mileage expenses.

5.6 Reduction in Staff and Seniority

Seniority - Definition

Seniority is the length of an employee's service starting with the first day that duties are performed as a regular, nonsubstitute employee.

Employees who are promoted or transferred out of the bargaining unit and subsequently return to the bargaining unit without a break in service to the District, shall have their seniority computed from their first day of original employment but will not be credited with seniority credit for the time spent outside the bargaining unit.

When two (2) or more employees of the same category begin work on the same day, seniority shall be determined by a random lot selection conducted by the Administration in the presence of a member of the Association.

A. Seniority is lost upon the following:

1. Resignation
2. Dismissal
3. Retirement

B. Seniority is retained but shall not accrue during the following:

1. Unpaid leave of absence
2. Unpaid sick leave
3. Seniority earned within the bargaining period prior to promotion outside the bargaining unit
4. Period of layoff as established by this Agreement

C. Seniority continues to accrue during the following:

1. Paid leave of absence
2. Temporary disability due to a work related injury

Seniority List

By February 1, annually, the Employer shall publish a seniority list for each of the job categories.

A copy of the list will be given the Association President and posted in the Elementary School building, High School building and in the Unit Office and Bus Garage. After March 1 of any given year, the seniority list shall be deemed accurate and no exceptions will be granted for that school year.

Seniority list shall be published for the following job categories:

1. Cook
2. Custodian
3. Secretary
4. Teacher Aide
5. Study Hall Monitor
6. Bus Driver
7. Bus Mechanic
8. Lunchroom Clerk
9. Nurse
10. AER Monitor

For the purpose of layoff and recall, employees shall accrue seniority as listed in the category(ies) he/she is currently employed and shall retain any previous accumulated seniority in any other category the employee has worked. However, seniority shall accumulate in only the category(ies) in which the employee is presently employed.

For the purpose of salary schedule placement, an employee who transfers to a new classification shall be given credit on the salary schedule of the new classification for all previous district employment. However, seniority shall accumulate in only the category(ies) in which the employee is presently employed.

Layoff Procedure

If an employee is removed or dismissed or has his/her hours reduced as a result of a decision of the Board to decrease the number of employees or to discontinue some particular type of service, written notification shall be given the employee by certified mail, at least 30 days prior to dismissal date, or within 10 days if employed as an individual aide.

The employee with the shorter length of continuing service with the District, within the respective category of position, shall be dismissed first.

Recall

If the Board has any vacancies for the following school term or within one (1) calendar year from the beginning of the following school term, the positions thereby becoming available within a specific category of position shall be tendered to the employees so removed or dismissed from that category of position, so far as they are qualified to hold such position. Employees recalled from layoff status shall retain all previously accumulated sick days.

Waiver of Recall Rights

Failure of the employee to respond within ten (10) calendar days after the receipt of the Board's letter of recall sent by certified mail to the employee's address on file with the Board recalling such employee will result in termination of the employee's right of recall to any full or part-time position hereunder. It shall be the responsibility of the employee to inform the Superintendent of any change in home address.

5.7 Evaluation

Frequency

Employees shall be evaluated at least once every school year.

Orientation

The supervisor shall acquaint each employee with the evaluation procedures and evaluation form to be used. No formal evaluations may take place until such orientation has been completed.

Evaluation Instrument

The administration shall evaluate each employee in writing, using an evaluation instrument designed by the administration, and shall provide a copy of said evaluation to each employee.

Evaluation Conference

The evaluator shall have a post-evaluation conference with the employee within twenty (20) working days following the formal evaluation of the employee. The evaluator and the employee shall review the evaluation. The employee shall sign the evaluation instrument indicating it has been discussed. The signature of the employee may not mean he/she agrees with the contents of the evaluation. The employee shall have the right to submit a written explanation or other written statements regarding any evaluation for inclusion in his/her personnel file within 5 working days of receipt of written comments. The written comments submitted by an employee will be attached to the evaluator's written evaluation and maintained in the employee's personnel file. The evaluator will sign the employee's response acknowledging that he/she has read the material.

5.8 Work Year, Work Week, and Work Day

The days worked by the regularly employed part-time support staff are based on student attendance days that require employee presence. The bus drivers and the cooks receive one additional day for preparation. The normal work day, excluding lunch, for employees shall be:

Category	Hour/Day	Days/Year
Mechanic/Custodian (summer)	8	260
Custodian	8	260
High School Secretary	8	260
Elementary School Secretary	8	190
Full Time Aide	6.75	Student attendance days
Study Hall Monitor	6.75	Student attendance days
AER Monitor	3.5	Student attendance days
High School Cook	6.0	Student attendance days
Elementary School Cook	6	Student attendance days
Bus Driver	3 hours 50 minutes	Student attendance days
Voc/Spec. Ed. Bus Driver	3 hours 50 minutes	Student attendance days
Bus Aide	2 trips	Student attendance days
Nurse	6	Student attendance days

District Head Cook: 3 additional hours per week at the employee's current rate of pay.

In a calendar year that has less than 260 working days, the employee will be paid for the actual days in the working year. If the working days in the year is greater than 260, the employee will be allowed to take one day of unpaid leave for each day over 260.

The above table signifies the normal work year and hours of employment in that category. The information shown is used for annualizing the salary to enable the employee to receive the same amount each month rather than by being paid strictly by the hour. Where the employee fails to work the normal number of hours in a pay period, adjustments will be made in the following pay period. Where the employee works more hours in a pay period than the normal work day, those extra hours will be reported on the time sheet. Overtime must be pre-approved by building administrator or superintendent except in emergency situations. Adjustments will be made to the payroll on a monthly basis. The Board of Education reserves the right to decrease the number of working hours and days based upon need and economic conditions. The Board of Education may employ part-time employees and adjust their work year based on the need of the District.

Snow Days/Emergency Days/School Cancellation

If school is canceled after students have been transported to school, bus drivers shall transport students back home and be paid for all hours and work performed that day.

If school is canceled, all employees shall be paid for all hours and work performed that day.

At times, it may be necessary for a cook to come in on a Holiday, snow day, etc. Those extra hours will be reported on the time sheet. Adjustments will be made to payroll on a monthly basis.

Extra trips (defined as: sport, activity, and field trips) shall be assigned to all drivers. A rotating list shall be developed annually listing drivers' names alphabetically. The driver who is scheduled for a trip is responsible for taking the trip or for making arrangements with another driver to take the trip. If no other driver is available to take the trip, the driver shall take his/her scheduled assignment. Any driver who volunteers to take an additional trip shall not affect his status on the list. If a bus driver holds a second job position in the district, that driver will accumulate no more than 40 work hours in a given week without superintendent's approval. Hourly pay for drivers starts 15 minutes before the pickup time for extra trips to allow for pre-tripping, fueling, warming up, and cleaning the bus.

Custodial service may be required for certain events. Volunteers shall be sought to fill the needs first. If no volunteer is available, then the custodians shall be rotated from a list of building custodians. Custodians assigned to the building where the activity is scheduled will be used.

On days that the AER/Aide works through lunch break or stays for detentions, those extra hours will be reported on the time sheet. AER/AIDE will document all hours on time sheet. Adjustments will be made to payroll on a monthly basis.

E-LEARNING DAYS

E-Learning Days are designed to serve as official school attendance days when students stay home due to emergency situations; yet learning continues as students remotely leverage digital tools and engage in teacher-prepared lessons. In the event E-learning days are utilized, non-certified staff's contracted days and hours will not be reduced. Non-certified staff's responsibilities for an e-learning days will be directed by their supervisors.

5.9 Duty-Free Lunch Period

All employees who work four (4) or more hours a day shall be entitled to a thirty (30) minute duty-free unpaid lunch period, which shall be in addition to the above stated work day (see 5.8 of the Agreement)

5.10 Multiple Classifications

If an employee is working simultaneously in more than one position, the number of sick leave days the employee will earn will be computed on the total number of hours worked per day. For example, an employee who drives a school bus for three and one-half hours (3 1/2) per day and also is employed as a regular cook and works four (4) hours per day, the employee's workday will be computed as seven and one-half (7 1/2) hours. In the above example a sick leave day will be 7 1/2 hours. If the employee is absent for the entire day due to illness, one day of sick leave will be deducted from his/her total accumulated sick leave. If the employee is absent for less than one-half day due to illness, one 1/2 day of sick leave will be deducted from his/her total accumulated sick leave. If an employee is absent for over half the work day due to illness, a full day of sick leave will be deducted for his/her total accumulated sick leave.

- 5.11 If an employee is temporarily assigned to a different position with a different rate of pay for ten consecutive days, starting on the 11th consecutive day this Employee shall receive the higher rate of pay for hours assigned. This does not reflect hourly pay for experience.

5.12 Video Cameras

Use of Video Cameras in and near School Buildings: Video cameras may be installed in school buildings in hallways, cafeterias, gymnasiums, libraries, office areas, and some outdoor locations. The Association will be provided with a list of the specific locations of video cameras.

The intent of the use of video cameras is to maintain a safe environment for students and employees. The content of videotapes is subject to district policy and procedures concerning school student records and only those people with a legitimate educational or administrative purpose may view recordings. If the content of video material becomes

the subject of employee disciplinary hearing, the employee and the Association will have access to copies of the tape.

ARTICLE VI

ASSIGNMENTS, VACANCIES, TRANSFERS

6.1 Notification of Assignment

Employees shall be notified regarding any change in assignment for the forthcoming year, by August 1, if possible. Changes in teacher aide assignment may be made throughout the year pending special education placements and/or district needs.

6.2 Vacancies

- A. A vacancy shall be defined as a permanent position which has been newly created, or which has previously existed and has been vacated due to resignation, retirement, death or termination. The term "vacancy" shall not apply to any position from which an employee is absent due to leave.
- B. All vacancies that occur in bargaining unit or non-bargaining unit positions shall be posted in each building for a minimum of five (5) work days before the position is filled on a permanent basis. All vacancy notices shall contain the qualifications for the position, its duties, the rate of compensation, and the deadline for making application.
- C. Nine or ten month employees who are away from their assignments during the summer months may request in writing that the Superintendent's Office mail to them a copy of vacancy notices. All costs to be paid by the employee.

6.3 Transfers

When it is necessary to involuntarily transfer or reassign employees, to the extent possible, all volunteers shall first be considered.

ARTICLE VII

LEAVES OF ABSENCE

7.1 Sick Leave

All employees shall be entitled to fifteen (15) days of sick leave per year, which can accumulate up to (240) days.

Sick leave may be taken in 1/2 day increments.

Sick leave shall be interpreted to mean personal illness, quarantine at home, or serious illness, birth or adoption, or death in the immediate family. For purposes of this section, "immediate family" shall be defined as per the Illinois Sick leave Act: include parents and step-parents, spouse, domestic partners, brothers, sisters, children (including step-children and foster children), grandparents, grandchildren, parents-in-law, brothers-in-law, sisters-in-law, sons-in-law, daughters-in-law, and legal guardians. Sick leave shall not be used for any purposes other than the definition. If it is determined that an employee could be abusing sick leave privileges, doctor's notes will be required.

Absence due to injury incurred in the course of the employee's workday while assigned duties shall be treated as sick leave. However, income received from Worker Compensation shall be deducted from the District's compensation liability to the employee. When income from other than District funds is received by the employee due to his/her injury, the District shall only be responsible for the remaining salary owed the employee. The intent of the District is that in no case shall the employee who was injured while performing his/her duties receive more than one hundred percent (100%) of his/her gross salary.

If an employee who is injured on the job receives no District funds, no sick leave benefits will be deducted.

Sick leave may be taken for additional Bereavement Leave if the Bereavement Leave (7.5) is exhausted only for immediate family as defined in above.

For retirement purposes only, sick leave shall accumulate to (240) days. (Employees accumulate the first (240) per contract and any days over that amount are used only for IMRF retirement purposes.)

An employee that is rified shall maintain accumulated sick leave days through the recall period.

7.2 Personal Leave

Five (5) days of sick leave may be granted to employees with the administrator's approval, for personal leave provided the following conditions are met.

- A. Written request for a personal leave day shall be given the immediate supervisor at least seventy-two (72) hours prior to the day of the intended use.

The 72 hour restriction may be waived by the immediate supervisor.

- B. Personal leave cannot be used prior to or to extend a vacation period, immediately before or after a holiday, or the first or last five student attendance days of the school year. The above restrictions may be waived by the Superintendent. The Superintendent's decision regarding such waiver is final.
- C. No more than a total of two (2) employees in the District and no more than (1) per building may use personal leave on the same day. No more than one (1) bus driver may use personal leave on the same day.
- E. All used personal leave days will be deducted from the employee's accumulated sick leave.

- F. Employees who utilize all personal leave days will not be allowed a “dock” day without prior approval of the Superintendent.

7.3 Leave for Jury Duty

The Board recognizes the need for participation of employees in the judicial system. Employees who are absent for jury duty will receive their regular salary. They will turn in their jury duty pay to the District to help offset the cost of a substitute.

7.4 Maternity Leave

Any employee who is pregnant is eligible for maternity leave, subject to the following conditions:

- 7.4.1 Maternity leave shall be an uncompensated leave of absence. However, accumulated sick leave may be used in lieu of or combined with uncompensated leave. In order for an employee to combine sick leave with uncompensated leave, the employee must be sick in accordance with the provisions of this agreement.
- 7.4.2 Any leave related to pregnancy shall be for a fixed period of time and is subject to the approval of the Superintendent. Written application for leave shall be made to the Superintendent no later than sixty (60) days prior to the commencement of the leave. The application shall state the anticipated beginning and ending dates of the leave, and the type or combination (sick and/or unpaid) leave(s) desired. The beginning and termination dates of the leave shall be determined by the employee and her physician. No unpaid leave, sick leave, or combination thereof related to pregnancy shall exceed one (1) calendar year.
- 7.4.3 An employee who returns from maternity leave shall be reinstated to her former or similar position. No later than forty-five (45) days prior to termination of pregnancy related leave, the employee shall submit to the Superintendent written notice of her intent to return. Failure to do so will result in the employee waiving her right to future employment in the District.
- 7.4.4 Any request regarding pregnancy leave shall be subject to final approval of the Board of Education.
- 7.4.5 Disability caused or contributed to by pregnancy, childbirth, or related medical conditions shall be considered as any other medical disability and the employee may use sick leave to the extent that it has accumulated.

7.5 Bereavement Leave

In addition to sick leave, each employee shall be allowed three days of absence per death, up to two (2) deaths per school year without loss of pay. If additional days are needed, sick leave may be taken for covered immediate family members as defined by the Illinois Sick Leave Act & Illinois Family Bereavement Leave Act.

7.6 Unpaid Leave of Absence

Leaves of absence without pay may be granted to employees who have rendered satisfactory service to the District. Any employee granted such leave shall return to employment in a similar capacity at the termination of such leave, provided the employee follows these procedures:

- A. Except in the case of an emergency, written requests for leaves of absence without pay shall be made at least ninety (90) days prior to the leave. All requests are subject to final approval of the Board of Education.
- B. Dates of departure and return must be acceptable to the administration and determined prior to initiating such request.
- C. Leaves of three (3) calendar weeks or less, if acceptable and approved by the Superintendent, will not require Board approval, nor ninety (90) days advance notice. The Superintendent may approve such request, but the Superintendent’s rejection or approval of such leave request shall be at the Superintendent’s sole and exclusive discretion.

- D. The employee shall inform the Superintendent of his/her intent to return to a similar position the for the following school term no later than February 1. If the employee fails to inform the Superintendent prior to February 1, the employee waives his/her right to future employment in the District.
- E. Employees taking an unpaid leave of ninety (90) working days or more shall not receive experience credit for the year they are on leave.
- F. During the unpaid leave, the employee may purchase hospitalization and major medical insurance at the District group rate with eligibility determined by the insurance carrier. The employee shall be responsible for the full amount of each month's premium. Said payments shall be made fifteen (15) calendar days prior to the District's premium due day to the Unit District Office.

7.7 Perfect Attendance Bonus

Any 9-month employee with perfect attendance (with exception of vacation days & jury duty) at the end of each semester will receive a \$250 bonus to be paid on January 15 and July 15th. (2 bonuses—total of \$500 annually)

Any 12-month employee with semi-annual perfect attendance (with exception of vacation days & jury duty) will receive a \$300 bonus to be paid on January 15th & July 15th. (2 bonuses—total of \$600 annually).

for example: Perfect Attendance July 1st – December 31st = \$300
Perfect Attendance January 1st – June 30th = \$300

7.8 Longevity Bonus

In addition to salary set forth in the salary schedule, employees shall also be eligible for the following longevity bonus paid in the pay period after their district hire anniversary date each year:

18 – 22 years = 2.0% of base salary, not to exceed \$800
23+ years = 3.0% of base salary, not to exceed \$800

When an employee determines that they wish to retire, he/she may be eligible for an end of employment payment. To be eligible for the payment the employee must MEET the following criteria.

1. Employee must be at least 55 years of age to be eligible for the payment.
2. Employee must obtain 25 years of IMRF credit service in the St. Elmo School District #202. There will not be a payment to an employee who has not obtained (25) years of service in the district.
3. If the above criteria are met, the support employee shall receive one payment of \$2000. The payment will be paid promptly to a qualifying employee in the first payroll cycle of the District that is at least 30 days after the retiree's final date of service.

7.9 FML (Family Medical Leave)

To be eligible for FLMA leave, an employee must be employed by the district for at least 12 months and has been employed for at least 1000 hours of service during the 12-month period immediately before the beginning of the leave. If an employee has been employed by the district more than 12 months and worked at least 1000 hours of service then, employees shall be eligible for up to twelve weeks per year of family and medical leave for any of the following reasons:

1. The birth of a child and to care for the newborn child within one year of birth;
2. The placement with the employee of a child for adoption or foster care and to care for the newly placed child within one year of placement;
3. To care for the employee's spouse, child, or parent who has a serious health condition;
4. A serious health condition that makes the employee unable to perform the essential functions of his or her job;
5. Any qualifying exigency arising out of the fact that the employee's spouse, son, daughter, or parent is a covered military member on "covered active duty;" or

6. Twenty-six work weeks of leave during a single 12-month period to care for a covered service member with a serious injury or illness if the eligible employee is the service member's spouse, son, daughter, parent, or next of kin (military caregiver leave)

During the family and medical leave period, the employer shall continue to pay the health insurance premium set forth in the collective bargaining agreement. The employee shall have the option to make use of family and medical leave or any other contractual leave. Where both the employee and a covered individual (for example, spouse, parent, child, etc.) are employed by the Board, each will be entitled to 12 weeks of leave in a year (January 1-December 31). Family and medical leave may be taken intermittently. Following the leave-period the employee shall be reinstated to his/her previous position.

ARTICLE VIII

COMPENSATION AND BENEFITS

8.1 Salary

The salary schedules for all classifications shall be specified in Appendix A of this Agreement.

Increases in pay shall begin on July 1 for those individuals employed on a 12 month basis. For school year employees, the salary increases shall begin with the first September paycheck.

Placement on the salary schedule is based on years of experience in that specific classification.

If an employee is hired prior to November 1 of the initial year of employment, he shall be eligible to advance a step on the salary schedule at the beginning of the next fiscal year.

8.2 Overtime

Employees required to work beyond forty (40) hours per week, shall be compensated at one and one-half (1-1/2) times their regular rate of pay. Overtime must be pre-approved by building administrator or superintendent except in emergency situations. Any overtime turned in but not pre-approved will not be paid.

8.3 IMRF

According to the authority granted by the Pension Reform Act of 1974 of the Internal Revenue Code and Public Act 81-5136, Ill.Rev.Stat., ch. 108-1/2, par. 7-173.2, the Board of Education agrees to pay out of the above salary schedule the current IMRF percentage of each employee's salary to the Illinois Municipal Retirement Fund (IMRF) on behalf of each employee as a tax sheltered direct contribution. Should any of the above be declared improper by an IRS ruling or opinion or by a court of competent jurisdiction, that clause or portion thereof shall be deleted to the extent that it violates the ruling or opinion.

8.4 Holidays

The following days shall be paid holidays for twelve month full-time employees who work eight (8) or more hours per day if the day falls in their normal work year:

Labor Day	Martin Luther King Jr.'s Birthday
Columbus Day	Lincoln's Birthday (President's Day, if waived)
Veteran's Day	Casimir Pulaski's Birthday
Thanksgiving Day	Good Friday
Christmas Day	Memorial Day
New Years Day	July 4
Friday after Thanksgiving	Christmas Eve (December 24)

- A. The employee must work within the payroll period during which the holiday occurs.

- B. The employee must work the last scheduled working day before the holiday and the first scheduled work day after the holiday. If July 4, Christmas Eve, Christmas Day, or New Year's Day falls on a weekend, the Board shall grant the employees either the Friday prior to the holiday or the Monday following the holiday as a floating holiday. The day to be used is the decision of the Board of Education.
- C. The Board reserves the right to waive any of the above holidays and the employees will be required to work on such days if students are present. For each holiday waived by the Board, they shall be replaced by another holiday selected with Board approval unless the holiday is not recognized by Illinois State Board of Education as a weekday holiday.

8.5 Vacation

After a year of continuous employment, full-time, year-round employees (employees employed on a twelve month basis) shall be eligible for a vacation on the following basis.

After 1 year of continuous employment - 5 working days.

After 2 years but less than 7 years of continuous employment - 10 working days.

After 7 years but less than 12 years of continuous employment - 15 working days.

After 12 years an employee shall receive an additional vacation day for each year of service up to 17 years, providing a maximum of 20 total vacation days.

Vacation time earned in one year must be used within one year of date accrued. Employees terminating their employment shall be entitled to remuneration for the amount of vacation earned to the date of termination, provided they have been in the employment of the school system for one year.

Requests for vacation shall be submitted to the administrator to whom the employee is responsible and must be approved by the Superintendent. Every effort shall be made to meet the desires of the employee and the needs of the District in establishing vacation dates. As much as possible, vacations shall be taken during the time when there is not a major inconvenience to the district, except by special arrangement with the Superintendent or the Superintendent's designee. The Superintendent shall keep a record of vacations earned and the dates taken.

- 8.6 Section 125 Plan According to the authority granted under Section 125 of the Internal Revenue Code, Employees who elect to participate in the District's 125 Plan may do so by completing the appropriate forms provided by St. Elmo Community School District #202. The Board may make medical insurance an available option for all support staff under the Section 125 Plan on a pre-tax basis.

The employee agrees to follow all the rules and regulations of the Internal Revenue Code regarding the sheltering of such contributions. Should the District's Plan be declared illegal or any of the above be declared improper by an Internal Revenue Code ruling or opinion, that clause or portion thereof shall be deleted from the Plan or this agreement to the extent it violated the ruling or opinion.

The Board shall pay for the initial writing of the Section 125 Plan, any amendments to the plan to maintain the legal status of the plan, and the yearly maintenance fees. Any other fees shall be born by the individual employees who participate in the plan.

8.6.1 Benefits

The District may establish a flexible benefits plan which may include medical health insurance and annuity option. The Plan shall be administered by the current Plan Administrator.

For employees selecting the medical insurance option of the 125 Plan, the St. Elmo CUSD #202 will pay the following amount per month for the specified school year toward the full premium for employees that work 6 or more hours per day (170 or more days per year):

2023–2024	\$600
2024–2025	\$600

For employees selecting the medical insurance option but working less than 6 hours yet more than 2.5 hours, the St. Elmo CUSD #202 will pay the following amount per month for ten months the specified school year toward the full premium:

2023–2024	\$600
2024–2025	\$600

(If at any time during the duration of this collective bargaining agreement, a change in federal or state laws or regulations becomes effective which affects the cost or availability of any of the health insurance offered under this agreement, the parties agree to re-open the contract to renegotiate the affected provisions).

Prior to any change in coverage or carrier of the presently existing insurance, the Association will be allowed to make recommendations to the Board concerning these changes.

The choice of tax sheltered annuities shall be limited to those from a list of mutually agreed upon by the parties.

8.7 Physical Reimbursement

The Board shall pay for an annual state required bus driver physical at the Board's choice of physician/medical contractor. The board will also pay for an annual drug test as a part of the required physical at the board's choice of blood testing facility. The board shall pay for the annual bus driver permit at \$4 plus the annual ROE refresher course, and the cooks' state Certification Renewal Class at a cost of \$25.

8.8 Pay Days

Employees shall have the option of a 10 or a 12 month salary distribution. Employees shall be paid on the 15th and the 30th of each month. Should the pay date fall on a weekend or a holiday, the paychecks will be prepared and available on the last day prior to the weekend or holiday.

8.9 Ticket Takers

In the event that volunteers cannot be found to sell tickets for the school year events, teacher aides, study hall monitor, and AER personnel will be given the list of event dates to be filled. If by September 15th of each year, all event dates are not filled, then each staff member not already signed up will be assigned one (1) date. It is the responsibility of the person who signed up for the event to find a replacement ticket taker if they are unable to fulfill their event requirement. Ticket sales and taking will be compensated at \$40 per night. Saturday tournament with more than 3 games, ticket sales and taking will be compensated at \$75.

ARTICLE IX

EFFECT OF AGREEMENT

9.1 No Strike

During the terms of the Agreement, the Association will not instigate, encourage or support a strike, in whole or in part, or participate in a concerted action, in whole or in part, to withhold full and complete services to the activities of the District.

9.2 Savings Clause

Should any article, section or clause of this Agreement be declared illegal by a court of competent jurisdiction, then that article, section or clause shall be deleted from this Agreement to the extent that it violates the law. The remaining articles, sections and clauses shall remain in full force and effect for the duration of this Agreement.

9.3 Complete Understanding

The terms and conditions set forth in this Agreement represent the full and complete understanding between the parties. The terms and conditions may be modified only through the written mutual consent of the parties.

9.4 Management Rights

The Board shall not be required to bargain over inherent managerial policy which shall include the following areas of discretion or policy:

- A. The functions of the Board;
- B. Standards of Service;
- C. The Board's overall budget;
- D. Selection of new employees; and
- E. Direction of all employees.

9.5 Duration

This Agreement shall be effective September 1, 2023 and shall remain in effect until August 31, 2025.

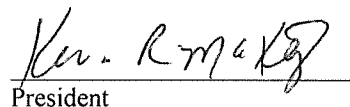
This Agreement is signed this 20th day of May 2023.

In Witness Whereof:

For the St. Elmo Educational Support
Personnel, Association IEA/NEA


President

For the Board of Education,
St. Elmo C.U.S.D. #202


President

Appendix A

2023-2025 St. Elmo ESP Salary Schedule

2023-2024			2024-2025	
Library Aide/ Study Hall Aide	1-2	\$17.32	1-2	\$17.76
	3-4	\$18.01	3-4	\$18.46
	5-6	\$18.69	5-6	\$19.16
	7-8	\$19.37	7-8	\$19.86
	9-10	\$20.06	9-10	\$20.56
	11 +	\$20.74	11 +	\$21.26
AER Monitor	1-2	\$16.96	1-2	\$17.39
	3-4	\$17.65	3-4	\$18.09
	5-6	\$18.33	5-6	\$18.79
	7-8	\$19.01	7-8	\$19.49
	9-10	\$19.70	9-10	\$20.19
	11 +	\$20.38	11 +	\$20.89
Teacher Aide/ Paraprofessional	1-2	\$18.72	1-2	\$19.18
	3-4	\$19.72	3-4	\$20.21
	5-6	\$20.72	5-6	\$21.24
	7-8	\$21.72	7-8	\$22.27
	9-10	\$22.73	9-10	\$23.30
	11 +	\$23.73	11 +	\$24.32
Custodian	1-2	\$15.92	1-2	\$16.32
	3-4	\$16.85	3-4	\$17.27
	5-6	\$17.78	5-6	\$18.22
	7-8	\$18.70	7-8	\$19.17
	9-10	\$19.63	9-10	\$20.12
	11 +	\$20.56	11 +	\$21.07
Cook	1-2	\$18.04	1-2	\$18.49
	3-4	\$18.96	3-4	\$19.44
	5-6	\$19.89	5-6	\$20.39
	7-8	\$20.82	7-8	\$21.34
	9-10	\$21.74	9-10	\$22.29
	11 +	\$22.67	11 +	\$23.24
Head Cook Stipend		\$1,637.67	Head Cook Stipend	\$1,678.61
Mechanic	1-2	\$15.35	1-2	\$15.73
	3-4	\$15.91	3-4	\$16.31
	5-6	\$16.49	5-6	\$16.90
	7-8	\$17.04	7-8	\$17.46
	9-10	\$17.71	9-10	\$18.15
	11 +	\$18.44	11 +	\$18.90
Secretary	1-2	\$17.70	1-2	\$18.14
	3-4	\$18.44	3-4	\$18.90
	5-6	\$19.19	5-6	\$19.67
	7-8	\$19.94	7-8	\$20.43
	9-10	\$20.68	9-10	\$21.20
	11 +	\$21.43	11 +	\$21.96
Grandfathered Secretary		\$22.33		
Bus Drivers 1-5 years	Bus Drivers 1-5 years		Bus Drivers 1-5 years	
Regular Route (2 runs per day)	Regular Route (2 runs per day)	\$63.66 per run	Regular Route (2 runs per day)	\$64.26 per run
Voc/Spec Ed. (3 runs per day)	Voc/Spec Ed. (3 runs per day)	\$132.50 per day-3 trips	Voc/Spec Ed. (3 runs per day)	\$133.10 per day-3 trips
Extra Trips	Extra Trips	\$15.91 hour	Extra Trips	\$16.39 hour
Bus Drivers 6 + years	Bus Drivers 6 + years		Bus Drivers 6 + years	
Regular Route (2 Runs per day)	Regular Route (2 runs per day)	\$64.95 per run	Regular Route (2 runs per day)	\$65.55 per run
Voc/Spec Ed. (3 runs per day)	Voc/Spec Ed. (3 runs per day)	\$135.20 per day-3 trips	Voc/Spec Ed. (3 runs per day)	\$135.80 per day-3 trips
Extra Trips	Extra Trips	\$16.14 hour	Extra Trips	\$16.54 hour
Summer School Route	Summer School Route	\$990.00	Summer School Route	\$990.00
Bus Aide	Bus Aide	\$14.02 per trip	Bus Aide	\$14.37 per trip
Lunchroom Clerk	Lunchroom Clerk	\$13.65 per hour	Lunchroom Clerk	\$13.99 per hour